

COMMITTEE ON COMMERCE
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2244
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 12-1567, Arizona Revised Statutes, is amended to
3 read:

4 12-1567. Satisfaction of judgment; superior court; filing
5 procedures; hearing; bond

6 A. The prevailing party shall file a satisfaction of judgment in
7 the superior court within forty days after a judgment has been paid in
8 full.

9 B. If the prevailing party fails to file a satisfaction of judgment
10 or cannot be located after the opposing party has exercised due diligence
11 in attempting to locate the prevailing party, the opposing party may file
12 a motion to compel satisfaction of the judgment. The opposing party shall
13 include with the motion to compel satisfaction of the judgment an
14 affidavit that evidences proof of payment and, if necessary, the due
15 diligence that was performed in attempting to locate the prevailing
16 party. If the motion is granted, the judgment is deemed satisfied.

17 C. A judge may hold a hearing on the motion to compel satisfaction
18 of the judgment.

19 D. A judge may compel the moving party to post a bond with the
20 court in the amount of the judgment.

21 E. NOTWITHSTANDING SUBSECTIONS B AND C OF THIS SECTION, IF A TENANT
22 FILES A MOTION TO COMPEL SATISFACTION OF THE JUDGMENT AGAINST A LANDLORD
23 FOLLOWING AN EVICTION ACTION AND THE LANDLORD FAILS TO RESPOND TO THE
24 MOTION TO COMPEL SATISFACTION OF THE JUDGMENT WITHIN FIFTEEN DAYS AFTER
25 THE MOTION IS FILED, ALL OF THE FOLLOWING APPLY:

26 1. THE FEE FOR FILING A MOTION TO COMPEL SATISFACTION OF THE
27 JUDGMENT IS WAIVED.

28 2. THE JUDGE MAY NOT HOLD A HEARING ON THE MOTION TO COMPEL
29 SATISFACTION OF THE JUDGMENT.

1 3. THE JUDGMENT IS DEEMED SATISFIED IF THE TENANT SUBMITS PROOF OF
2 PAYMENT.

3 4. THE JUDGE SHALL ISSUE AN ORDER SEALING ALL RECORDS RELATED TO
4 THE EVICTION ACTION PURSUANT TO SECTION 33-1379.

5 Sec. 2. Section 22-247, Arizona Revised Statutes, is amended to
6 read:

7 22-247. Satisfaction of judgment; filing procedures; hearing;
8 bond

9 A. The prevailing party shall file a satisfaction of judgment in
10 the justice court within forty days after a judgment has been paid in
11 full.

12 B. If the prevailing party fails to file a satisfaction of judgment
13 or cannot be located after the opposing party has exercised due diligence
14 in attempting to locate the prevailing party, the opposing party may file
15 a motion to compel satisfaction of the judgment. The opposing party shall
16 include with the motion to compel satisfaction of the judgment an
17 affidavit that evidences proof of payment and, if necessary, the due
18 diligence that was performed in attempting to locate the prevailing
19 party. If the motion is granted, the judgment is deemed satisfied.

20 C. A justice of the peace may hold a hearing on the motion to
21 compel satisfaction of the judgment.

22 D. A justice of the peace may compel the moving party to post a
23 bond with the justice court in the amount of the judgment.

24 E. NOTWITHSTANDING SUBSECTIONS B AND C OF THIS SECTION, IF A TENANT
25 FILES A MOTION TO COMPEL SATISFACTION OF THE JUDGMENT AGAINST A LANDLORD
26 FOLLOWING AN EVICTION ACTION AND THE LANDLORD FAILS TO RESPOND TO THE
27 MOTION TO COMPEL SATISFACTION OF THE JUDGMENT WITHIN FIFTEEN DAYS AFTER
28 THE MOTION IS FILED [AND SERVED AS REQUIRED BY THE RULES OF PROCEDURE FOR
29 EVICTION ACTIONS], ALL OF THE FOLLOWING APPLY:

30 1. THE FEE FOR FILING A MOTION TO COMPEL SATISFACTION OF THE
31 JUDGMENT IS WAIVED.

32 2. THE JUSTICE OF THE PEACE MAY NOT HOLD A HEARING ON THE MOTION TO
33 COMPEL SATISFACTION OF THE JUDGMENT.

34 3. THE JUDGMENT IS DEEMED SATISFIED IF THE TENANT SUBMITS [AN
35 AFFIDAVIT THAT EVIDENCES] PROOF OF PAYMENT.

36 4. THE JUSTICE OF THE PEACE [SHALL ISSUE AN ORDER SEALING ALL
37 RECORDS RELATED TO THE EVICTION ACTION PURSUANT TO SECTION 33-1379] [, AT
38 THE JUSTICE OF THE PEACE'S DISCRETION, MAY SEAL THE EVICTION PURSUANT TO
39 SECTION 33-1379 IF THE JUSTICE OF THE PEACE BELIEVES THAT SEALING THE
40 RECORD IS AN APPROPRIATE REMEDY GIVEN THE LANDLORD'S FAILURE TO COMPLY
41 WITH SUBSECTION A OF THIS SECTION].

42 ~~<<Sec. 3. Section 33-1368, Arizona Revised Statutes, is amended to~~
43 ~~read:~~

44 ~~33-1368. Noncompliance with rental agreement by tenant;~~
45 ~~failure to pay rent; utility discontinuation;~~
46 ~~liability for guests; definition~~

47 ~~A. Except as provided in this chapter, if there is a material~~
48 ~~noncompliance by the tenant with the rental agreement, including material~~

~~1 falsification of the information provided on the rental application, the
2 landlord may deliver a written notice, INCLUDING THE APPLICABLE COUNTY
3 FORM FOR A MOTION TO COMPEL SATISFACTION OF THE JUDGMENT, to the tenant
4 specifying the acts and omissions constituting the breach and that the
5 rental agreement will terminate on a date not less than ten days after
6 receipt of the notice if the breach is not remedied in ten days. For the
7 purposes of this section, material falsification includes the following
8 untrue or misleading information about the:~~

~~9 1. Number of occupants in the dwelling unit, pets, income of the
10 prospective tenant, social security number and current employment listed
11 on the application or lease agreement.~~

~~12 2. Tenant's criminal records, prior eviction record and current
13 criminal activity. Material falsification of information in this
14 paragraph is not curable under this section.~~

~~15 If there is a noncompliance by the tenant with section 33-1341 materially
16 affecting health and safety, the landlord may deliver a written notice to
17 the tenant specifying the acts and omissions constituting the breach and
18 that the rental agreement will terminate on a date not less than five days
19 after receipt of the notice if the breach is not remedied in five days.
20 However, if the breach is remediable by repair or the payment of damages
21 or otherwise, and the tenant adequately remedies the breach before the
22 date specified in the notice, the rental agreement will not terminate. If
23 there is an additional act of these types of noncompliance of the same or
24 a similar nature during the term of the lease after the previous remedy of
25 noncompliance, the landlord may institute a special detainer action
26 pursuant to section 33-1377 ten days after delivery of a written notice
27 advising the tenant that a second noncompliance of the same or a similar
28 nature has occurred. If there is a breach that is both material and
29 irreparable and that occurs on the premises, which may include an illegal
30 discharge of a weapon, homicide as prescribed in sections 13-1102,
31 13-1103, 13-1104 and 13-1105, prostitution as defined in section 13-3211,
32 criminal street gang activity as prescribed in section 13-105, activity as
33 prohibited in section 13-2308, the unlawful manufacturing, selling,
34 transferring, possessing, using or storing of a controlled substance as
35 defined in section 13-3451, threatening or intimidating as prohibited in
36 section 13-1202, assault as prohibited in section 13-1203, acts that have
37 been found to constitute a nuisance pursuant to section 12-991 or a breach
38 of the lease agreement that otherwise jeopardizes the health, safety and
39 welfare of the landlord, the landlord's agent or another tenant or
40 involving imminent or actual serious property damage, the landlord may
41 deliver a written notice for immediate termination of the rental agreement
42 and shall proceed under section 33-1377. The foregoing list of actions,
43 which may constitute a material and irreparable breach of a tenant's
44 lease, is not exhaustive.~~

~~45 B. A tenant may not withhold rent for any reason not authorized by
46 this chapter. If rent is unpaid when due and the tenant fails to pay rent
47 within five days after written notice by the landlord of nonpayment and
48 the landlord's intention to terminate the rental agreement if the rent is~~

~~1 not paid within that period of time, the landlord may terminate the rental
2 agreement by filing a special detainer action pursuant to section 33-1377.
3 Before the filing of a special detainer action the rental agreement shall
4 be reinstated if the tenant tenders all past due and unpaid periodic rent
5 and a reasonable late fee set forth in a written rental agreement. After
6 a special detainer action is filed the rental agreement is reinstated only
7 if the tenant pays all past due rent, reasonable late fees set forth in a
8 written rental agreement, attorney fees and court costs. After a judgment
9 has been entered in a special detainer action in favor of the landlord,
10 any reinstatement of the rental agreement is solely in the discretion of
11 the landlord.~~

~~12 C. The landlord may recover all reasonable damages resulting from
13 noncompliance by the tenant with the rental agreement or section 33-1341
14 or occupancy of the dwelling unit, court costs, reasonable attorney fees
15 and all quantifiable damage caused by the tenant to the premises.~~

~~16 D. The landlord may discontinue utility services provided by the
17 landlord on the day following the day that a writ of restitution or
18 execution is executed pursuant to section 12-1181. Disconnections shall
19 be performed only by a person authorized by the utility whose service is
20 being discontinued. This section does not supersede standard tariff and
21 operational procedures that apply to any public service corporation,
22 municipal corporation or special districts providing utility services in
23 this state.~~

~~24 E. On the day following the day that a writ of restitution or
25 execution is executed pursuant to section 12-1181, the landlord shall
26 comply with section 33-1370, subsections D, E, F, G, H and I regarding the
27 tenant's personal property.~~

~~28 F. For the purposes of this chapter, the tenant shall be held
29 responsible for the actions of the tenant's guests that violate the lease
30 agreement or rules or regulations of the landlord if the tenant could
31 reasonably be expected to be aware that such actions might occur and did
32 not attempt to prevent those actions to the best of the tenant's ability.~~

~~33 G. For the purposes of this section, "days" means calendar days.>>~~

34 Enroll and engross to conform
35 Amend title to conform
And, as so amended, it do pass

JEFF WENINGER
CHAIRMAN

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